

1. Pursuant to California Code of Civil Procedure (CCP) section 1008, this Court's Order for the December 26, 2025 hearing is hereby **RESCINDED** in its entirety.
2. Defendant TastyWings, Inc.'s monetary sanctions in the amount of \$4,942.50 per this Court's Order for the December 26, 2025 hearing is **VACATED** against Plaintiff in view of the circumstances set forth in Plaintiff's Motion For Reconsideration.
3. Relief from this Court's Order for the December 26, 2025 hearing is granted pursuant to CCP section 473(b) on the grounds of mistake, inadvertence, surprise, or excusable neglect, in the view of the circumstances set forth in Plaintiff's Motion For Reconsideration.
4. Plaintiff and Defendant, TastyWings, Inc. are hereby ordered to Meet and Confer to determine if, given Plaintiff's subsequent production of documents, there has been substantial compliance with Defendant's outstanding discovery requests. This Meet and Confer shall occur within 30 days of service of notice of entry of this Order.

2. 9:00 AM CASE NUMBER: C23-01788
CASE NAME: NEENA KADABA VS. ARASH HATAMBEIKI
*HEARING ON MOTION IN RE: STRIKE OR, IN THE ALTERNATIVE, TO TAX COSTS
FILED BY: KADABA, NEENA
TENTATIVE RULING:

The Plaintiffs' Motion to Strike or in the Alternative to Tax Costs is granted in part and denied in part.

As to Line 13, Models enlargements, and photocopies of exhibits: \$2,459.57, the motion is **denied**. The court finds that the three Ontellus invoices pertain to business records of parties retained by Plaintiffs for survey and other work related to the subject matter of the litigation. The Plaintiffs' objections are answered in the Defendant's pleadings and court finds the description of the costs to be appropriate.

As to Line 15, Mediation fees: \$5,400, the motion to strike is **granted**. These are not statutory fees. Merely because Plaintiffs requested mediation prior to the hearing on the Defendant's motion for summary judgment/adjudication

does not mean that the mediation was reasonably necessary to the litigation.

The fallacy of “*post hoc, ergo propter hoc*” (lat. “after this, therefore because of this.”) applies here. Just because something came after does not mean it caused it. Merely because the mediation was followed in time by the Plaintiffs’ dismissal of the case does not mean the mediation caused the dismissal, or was reasonably necessary to the litigation. The court would only be speculating that the mediation was reasonably necessary to the litigation on the record here.

As to Line 15, fees of \$220 for servicing the gate, the motion to strike is **granted**. The Defendants’ invoice, “for a service call on the gate,” to “reset the limit switches on the double swing gate,” appear to be ordinary service work or repair work. It does not appear to be a litigation driven inspection cost. That it may have been initiated by the Defendants in response to Plaintiff’s inspection of the gate as “proactive servicing,” as described by the Defendants, does not make it a litigation cost. It does not appear to be a mere “inspection,” rather, it appears to be regular servicing of the gate.

In summary, as to Line 13, Models enlargements, and photocopies of exhibits: \$2,459.57, the motion to strike or tax costs is **denied**. As to Line 15, Mediation fees: \$5,400, the motion to strike is **granted**. As to Line 15, fees of \$220 for servicing the gate, the motion to strike is **granted**.

3. 9:00 AM CASE NUMBER: C23-02656
CASE NAME: MARIA ANGUIANO VS. JOHN BALQUIST
HEARING IN RE: JOINDER OF MOTION FOR TERMINATING SANCTIONS AGAINST PLAINTIFF
ALEJANDRA CHAVEZ ORTIZ
FILED BY: BALQUIST, JOHN
TENTATIVE RULING:

The unopposed motion of Defendants Bethel Islands Estates MHC, LLC and Monte Christo Communities, LLC (Defendants) for Terminating Sanctions against Plaintiff Alejandra Chavez Ortiz is granted. Plaintiff Chavez Ortiz’s Complaint against Defendants is dismissed with prejudice in its entirety.